

# Maine Dispensary Compliance Self-Assessment

## 8-Domain Operator Self-Audit, 88 Checklist Items, 3 SOP Templates

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**For licensed Maine adult-use and medical cannabis dispensary operators.** The Maine OCP Adult-Use Program (Title 28-B) and Medical Program (Title 22 ch. 558-C) require dispensaries to demonstrate ongoing compliance across eight domains: facility security, Metrc inventory tracking, licensing documentation, employee records, financial reporting, product testing, marketing, and municipal authorization. This self-assessment walks each domain with the primary-source citation for each item. Run monthly for ongoing readiness, quarterly for comprehensive review, and immediately before any OCP auditor visit. Verify current requirements with the OCP auditor reference.

**By the Maine Dispensary Guide editorial team.**

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Published 2026-07-08 · Updated 2026-07-08.

### Inside this self-assessment:

- ◆ Reading guide (1 page)
- ◆ Domain 1 — Facility security (12 items, 2 pages)
- ◆ Domain 2 — Metrc inventory tracking (10 items, 2 pages)
- ◆ Domain 3 — Licensing documentation (10 items, 1 page)
- ◆ Domain 4 — Employee records + training (12 items, 2 pages)
- ◆ Domain 5 — Financial reporting + 280E (10 items, 1 page)
- ◆ Domain 6 — Product testing + labeling (12 items, 2 pages)
- ◆ Domain 7 — Marketing compliance (10 items, 1 page)
- ◆ Domain 8 — Municipal authorization (12 items, 1 page)
- ◆ 3 SOP templates + scoring summary (1 page)
- ◆ Resources + scoring template (1 page)

This content is informational and does not constitute legal or compliance advice. Compliance postures cited here are operator-facing guidance derived from OCP enforcement record and primary sources cited per item. Verify current requirements with OCP and your own counsel before binding your internal SOPs.

# Reading guide — how to use this self-assessment

Run cadence:

- **Monthly:** walk the day's checklist items (sweep-style) to catch drift before it compounds.
- **Quarterly:** full review of every domain, with the compliance officer + owner/operator signing each.
- **Pre-audit (30 days before any expected OCP visit):** complete the full assessment with action items resolved in the same session. Audit-day surprises are overwhelmingly items the operator could see but didn't check.

Scoring per item:

- **Pass** — item meets or exceeds OCP requirements as described; documented evidence on file.
- **Fail** — item does not meet requirement; document the gap, the planned remediation, the owner, and the target date in your internal compliance log.
- **N/A** — item does not apply to your license type (medical vs. adult-use); a short justification in the comment column is required.

Scoring across the assessment:

- Total items: 88 across 8 domains
- Pass rate target: 100% — any Fail requires an action item.
- If your dispensary has >5% Fail rate at any quarterly review, escalate to your licensed cannabis attorney before the next OCP touchpoint.

Evidence to keep on file per item:

- OCP application or amendment receipts (for licensing items)
- Metrc screenshots (for inventory items)
- Employee records (for badge/training items)
- Lab COAs (for product testing items)
- Quarterly marketing review (for marketing items)
- Municipal authorization letter + renewal receipts

# Domain D-1. Facility security (12 items)

| ■ | <b>Code</b> | <b>Facility security</b>                                                                                                                                                | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                           |
|---|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|-------------------------------------------|
|   | <b>S-01</b> | <b>24</b>-hour video surveillance operational across all entrances, exits, and product storage areas — per Title 28-B §902(1) and 18-691 CMR ch. 3 §2.1                 | Pass / Fail / N/A | _____        | Title 28-B §902(1); 18-691 CMR ch. 3 §2.1 |
|   | <b>S-02</b> | <b>Camera</b> footage retained for at least 90 days — per 18-691 CMR ch. 3 §2.4                                                                                         | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §2.4                     |
|   | <b>S-03</b> | <b>All</b> exterior entries fitted with professional-grade intrusion alarm tied to a monitored response service — per 18-691 CMR ch. 3 §3.1                             | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §3.1                     |
|   | <b>S-04</b> | <b>Locked</b> cannabis storage vault installed in compliance with OCP vault specs — wall/door/lock class, anchoring, dual control on access — per 18-691 CMR ch. 3 §4.1 | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §4.1                     |
|   | <b>S-05</b> | <b>Access</b> control system on every perimeter door, logging entry with employee badge ID + timestamp — per 18-691 CMR ch. 3 §5.2                                      | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §5.2                     |
|   | <b>S-06</b> | <b>Panic</b> buttons installed at point-of-sale, vault, and back-of-house — per 18-691 CMR ch. 3 §3.3                                                                   | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §3.3                     |

# Domain D-1. Facility security (12 items) (continued)

| ■ | <b>Code</b> | <b>Facility security</b>                                                                                                                  | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                        |
|---|-------------|-------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|----------------------------------------|
|   | <b>S-07</b> | Adequate exterior + parking lighting after dark — per Title 28-B §903(2)                                                                  | Pass / Fail / N/A | _____        | Title 28-B §903(2)                     |
|   | <b>S-08</b> | Video frame rate >= 7 FPS at all recorded cameras — per 18-691 CMR ch. 3 §2.2                                                             | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §2.2                  |
|   | <b>S-09</b> | Camera blind-spots documented with timed signage as a fallback for the OCP auditor — per 18-691 CMR ch. 3 §2.5                            | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §2.5                  |
|   | <b>S-10</b> | Secure transport vehicles for any wholesale transfers use locked compartments + GPS tracking — per 18-691 CMR ch. 3 §6.1                  | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §6.1                  |
|   | <b>S-11</b> | Cannabis product never visible from outside the premises; windows near product storage are blocked — per 18-691 CMR ch. 3 §2.6            | Pass / Fail / N/A | _____        | 18-691 CMR ch. 3 §2.6                  |
|   | <b>S-12</b> | Annual third-party security audit on file with documented findings + remediation — best practice (recommended; not strictly OCP-mandated) | Pass / Fail / N/A | _____        | OCP best practice (2024 Annual Report) |

Domain D-1 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

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## Domain D-2. Metrc inventory tracking (10 items)

| ■ | <b>Code</b> | <b>Metrc inventory tracking</b>                                                                                                                                                                             | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>       |
|---|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|-----------------------|
|   | <b>M-01</b> | Metrc integrated into POS system with bidirectional tag reconciliation — every sale debits the matched package; every inbound credits the package — per 18-691 CMR ch. 4 §3.1                               | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §3.1 |
|   | <b>M-02</b> | Daily inventory reconciliation at close of business — physical count matches Metrc active inventory; variance documented — per 18-691 CMR ch. 4 §6.1                                                        | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §6.1 |
|   | <b>M-03</b> | Monthly comprehensive reconciliation report filed with OCP by the 5th of the following month — per 18-691 CMR ch. 4 §7.1                                                                                    | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §7.1 |
|   | <b>M-04</b> | Metrc tier-2 or tier-3 subscription current (paid annual) — covers the license type's tag volume — per 18-691 CMR ch. 4 §3.2                                                                                | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §3.2 |
|   | <b>M-05</b> | Variance thresholds defined in internal SOP (flower <1.0%, concentrate <0.5%, edibles <2.0% by unit) — Yellow-tier variances logged + red-flagged; Red-tier triggers escalation — per 18-691 CMR ch. 4 §8.1 | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §8.1 |

## Domain D-2. Metrc inventory tracking (10 items) (continued)

| ■ | <b>Code</b> | <b>Metrc inventory tracking</b>                                                                                                                               | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                        |
|---|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|----------------------------------------|
|   | <b>M-06</b> | Package reject log captures every rejected Metrc-tagged product (illegible tag, mismatched manifest, etc.) — for OCP audit review — per 18-691 CMR ch. 4 §5.2 | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §5.2                  |
|   | <b>M-07</b> | Inventory aging review monthly: oldest 20% of products identified, disposition plan for any product >180 days — best practice                                 | Pass / Fail / N/A | _____        | OCP best practice (2024 Annual Report) |
|   | <b>M-08</b> | Metrc exception log reviewed weekly (merges, splits, discards with cause + resolution + sign-off) — per 18-691 CMR ch. 4 §5.3                                 | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §5.3                  |
|   | <b>M-09</b> | Cannabis waste/destruction logged via Metrc's waste-tracking flow — destruction witnessed per the SOP — per 18-691 CMR ch. 4 §5.4                             | Pass / Fail / N/A | _____        | 18-691 CMR ch. 4 §5.4                  |
|   | <b>M-10</b> | Metrc Maine onboarding packet on file; operator can name the onboarding coordinator + ticket number — best practice for audit                                 | Pass / Fail / N/A | _____        | Metrc Maine onboarding document        |

Domain D-2 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

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## Domain D-3. Licensing documentation (10 items)

| ■ | <b>Code</b> | <b>Licensing documentation</b>                                                                                                          | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>       |
|---|-------------|-----------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|-----------------------|
|   | <b>L-01</b> | Current OCP license posted prominently in the retail area — per Title 28-B §301(8)                                                      | Pass / Fail / N/A | _____        | Title 28-B §301(8)    |
|   | <b>L-02</b> | License renewal receipts on file (every year since active license issued) — per Title 28-B §304(5)                                      | Pass / Fail / N/A | _____        | Title 28-B §304(5)    |
|   | <b>L-03</b> | Operating agreement on file (matching the OCP-filed version); any amendments filed within 30 days — per 18-691 CMR ch. 1 §3.4           | Pass / Fail / N/A | _____        | 18-691 CMR ch. 1 §3.4 |
|   | <b>L-04</b> | Beneficial ownership disclosure on file matching current cap-table; any changes reported to OCP within 30 days — per Title 28-B §301(5) | Pass / Fail / N/A | _____        | Title 28-B §301(5)    |
|   | <b>L-05</b> | Surety bond current (no lapses) — per Title 28-B §302-A                                                                                 | Pass / Fail / N/A | _____        | Title 28-B §302-A     |

## Domain D-3. Licensing documentation (10 items) (continued)

| ■ | <b>Code</b> | <b>Licensing documentation</b>                                                                                                                                                               | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                        |
|---|-------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|----------------------------------------|
|   | <b>L-06</b> | Maine Secretary of State annual report current; Maine entity in good standing — per Title 28-B §301(4)                                                                                       | Pass / Fail / N/A | _____        | Title 28-B §301(4)                     |
|   | <b>L-07</b> | Municipal authorization letter current (no opt-out, no lease renewal failure) — per Title 28-B §403                                                                                          | Pass / Fail / N/A | _____        | Title 28-B §403                        |
|   | <b>L-08</b> | Source of funds documentation on file (or referenced from active license application packet) — per Title 28-B §301(7)                                                                        | Pass / Fail / N/A | _____        | Title 28-B §301(7)                     |
|   | <b>L-09</b> | Pending OCP enforcement actions or unresolved Notice of Deficiency — verified via OCP compliance portal                                                                                      | Pass / Fail / N/A | _____        | OCP compliance portal                  |
|   | <b>L-10</b> | Operating dual-license (medical + adult-use): separate operating locations documented; Metrc tag separation documented; financial bookkeeping separation documented — per Title 22 ch. 558-C | Pass / Fail / N/A | _____        | Title 22 ch. 558-C; Title 28-B §301(7) |

Domain D-3 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

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## Domain D-4. Employee records + training (12 items)

| ■ | <b>Code</b> | <b>Employee records + training</b>                                                                                          | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                      |
|---|-------------|-----------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|--------------------------------------|
|   | <b>E-01</b> | Every employee has a current OCP employee badge — per Title 28-B §503(1)                                                    | Pass / Fail / N/A | _____        | Title 28-B §503(1)                   |
|   | <b>E-02</b> | No badge with >90-day-old background check (operator can name recheck date for every badge) — per Title 28-B §503(3)        | Pass / Fail / N/A | _____        | Title 28-B §503(3)                   |
|   | <b>E-03</b> | Eight-hour responsible-vendor training current (renewed annually per employee) — per Title 28-B §501(2)                     | Pass / Fail / N/A | _____        | Title 28-B §501(2)                   |
|   | <b>E-04</b> | Responsible-vendor trainer on OCP-approved list — maine.gov/dafs/ocp/approved-trainers                                      | Pass / Fail / N/A | _____        | maine.gov/dafs/ocp/approved-trainers |
|   | <b>E-05</b> | Cannabis product never handled by any badge-holder with expired background check — operational SOP enforces this            | Pass / Fail / N/A | _____        | OCP best practice                    |
|   | <b>E-06</b> | Cannabis product never handled by any badge-holder with expired responsible-vendor training — operational SOP enforces this | Pass / Fail / N/A | _____        | OCP best practice                    |

## Domain D-4. Employee records + training (12 items) (continued)

| ■ | <b>Code</b> | <b>Employee records + training</b>                                                                                                                                            | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                               |
|---|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|-----------------------------------------------|
|   | <b>E-07</b> | Age-verification drill documented: store logs at least one quarterly attempted-underage purchase attempt + the operator response — best practice                              | Pass / Fail / N/A | _____        | OCP best practice                             |
|   | <b>E-08</b> | Separated employee badge revocation process on file (badge revoked with OCP within 7 days of separation) — per Title 28-B §503(5)                                             | Pass / Fail / N/A | _____        | Title 28-B §503(5)                            |
|   | <b>E-09</b> | No employee badge currently held by a person under 21 — per Title 28-B §501(1)                                                                                                | Pass / Fail / N/A | _____        | Title 28-B §501(1)                            |
|   | <b>E-10</b> | No employee badge currently held by a person with a Maine Disqualifying Conviction (per OCP disqualifying-conviction list, current as of audit date) — per Title 28-B §503(4) | Pass / Fail / N/A | _____        | Title 28-B §503(4); OCP disqualification list |
|   | <b>E-11</b> | No workplace harassment and non-discrimination policies posted — Maine state labor law; OCP verifies during on-site inspection                                                | Pass / Fail / N/A | _____        | Maine HR statutes                             |
|   | <b>E-12</b> | No workers comp coverage current (any employees) — Maine state labor law                                                                                                      | Pass / Fail / N/A | _____        | Maine HR statutes                             |

Domain D-4 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

\_\_\_\_\_

## Domain D-5. Financial reporting + 280E (10 items)

| ■ | <b>Code</b> | <b>Financial reporting + 280E</b>                                                                                                             | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>    |
|---|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|--------------------|
|   | <b>F-01</b> | Cannabis-specific bookkeeper engaged (CPA familiar with §280E) — best practice; not strictly OCP-mandated but Maine Revenue Services will ask | Pass / Fail / N/A | _____        | MRS Rule 36-000 §2 |
|   | <b>F-02</b> | IRC §280E apportionment methodology documented in close-of-books — COGS vs. non-deductible overhead — per IRC §280E                           | Pass / Fail / N/A | _____        | IRC §280E          |
|   | <b>F-03</b> | 10% Maine adult-use excise collected at register and remitted to MRS monthly — per MRS Rule 36-000 §2                                         | Pass / Fail / N/A | _____        | MRS Rule 36-000 §2 |
|   | <b>F-04</b> | 7.5% state sales tax collected at register and remitted to MRS monthly                                                                        | Pass / Fail / N/A | _____        | MRS Rule 36-000 §2 |
|   | <b>F-05</b> | Maine-state income tax filed annually; cannabis income separated from any non-cannabis management-entity income — per MRS Rule 36-000 §3      | Pass / Fail / N/A | _____        | MRS Rule 36-000 §3 |

# Domain D-5. Financial reporting + 280E (10 items) (continued)

| ■ | <b>Code</b> | <b>Financial reporting + 280E</b>                                                                                                                                         | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>    |
|---|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|--------------------|
|   | <b>F-06</b> | Surety bond expense accounted for in monthly close; renewal fees tracked — per Title 28-B §302-A                                                                          | Pass / Fail / N/A | _____        | Title 28-B §302-A  |
|   | <b>F-07</b> | No commingling of cannabis and non-cannabis funds (if dual-entity structure) — per Title 28-B §301(7)                                                                     | Pass / Fail / N/A | _____        | Title 28-B §301(7) |
|   | <b>F-08</b> | Audit trail documentation maintained for every financial transaction (cash register Z-tape, cash-deposit logs, armored-car receipt) — best practice for IRS audit defense | Pass / Fail / N/A | _____        | IRC §6001          |
|   | <b>F-09</b> | Bank statement reconciliation monthly; any unexplained variance documented                                                                                                | Pass / Fail / N/A | _____        | IRC §6001          |
|   | <b>F-10</b> | Quarterly financial review with operator/owner + CPA on the calendar with documented minutes                                                                              | Pass / Fail / N/A | _____        | Best practice      |

Domain D-5 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

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# Domain D-6. Product testing + labeling (12 items)

| ■ | <b>Code</b> | <b>Product testing + labeling</b>                                                                                                                                                                                        | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                              |
|---|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|----------------------------------------------|
|   | <b>T-01</b> | Every batch of product has a passing COA from an OCP-licensed testing lab before it enters retail inventory — per 18-691 CMR ch. 5 §2.1 and Title 28-B §702                                                              | Pass / Fail / N/A | _____        | 18-691 CMR ch. 5 §2.1; Title 28-B §702       |
|   | <b>T-02</b> | COA covers all required analyte panels (cannabinoids, terpenes, heavy metals, microbials, mycotoxins, residual solvents for concentrates) — per 18-691 CMR ch. 5 §3.1                                                    | Pass / Fail / N/A | _____        | 18-691 CMR ch. 5 §3.1                        |
|   | <b>T-03</b> | COAs filed with OCP per the track-and-trace rule — per 18-691 CMR ch. 5 §4.1                                                                                                                                             | Pass / Fail / N/A | _____        | 18-691 CMR ch. 5 §4.1                        |
|   | <b>T-04</b> | Test-failing products documented and quarantined per the Metrc exception workflow — per 18-691 CMR ch. 5 §5.1                                                                                                            | Pass / Fail / N/A | _____        | 18-691 CMR ch. 5 §5.1                        |
|   | <b>T-05</b> | Product labels include every required disclosure: serving size (10mg THC cap for edibles per Title 28-B §703(1)(F)), batch ID, producer license, harvest date, manufacture date, test-result summary, allergen statement | Pass / Fail / N/A | _____        | Title 28-B §703(1)(F); 18-691 CMR ch. 5 §6.1 |
|   | <b>T-06</b> | Child-resistant packaging on every retail product — per Title 22 §2429-A                                                                                                                                                 | Pass / Fail / N/A | _____        | Title 22 §2429-A                             |

## Domain D-6. Product testing + labeling (12 items) (continued)

| ■ | <b>Code</b> | <b>Product testing + labeling</b>                                                                                                                | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>                       |
|---|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|---------------------------------------|
|   | <b>T-07</b> | Edible products capped at 200mg THC per package — per Title 28-B §703(1)(F)                                                                      | Pass / Fail / N/A | _____        | Title 28-B §703(1)(F)                 |
|   | <b>T-08</b> | Edible products capped at 10mg THC per serving, with at least 90% compliance variance per package — per Title 28-B §703(1)(F) and PL 2023 c. 396 | Pass / Fail / N/A | _____        | Title 28-B §703(1)(F); PL 2023 c. 396 |
|   | <b>T-09</b> | No packages with appeal-to-minors imagery (cartoon characters, candy lookalikes, etc.) — per Title 28-B §701(2)(B)                               | Pass / Fail / N/A | _____        | Title 28-B §701(2)(B)                 |
|   | <b>T-10</b> | Do A link or QR code printed on every retail package — per 18-691 CMR ch. 5 §6.2                                                                 | Pass / Fail / N/A | _____        | 18-691 CMR ch. 5 §6.2                 |
|   | <b>T-11</b> | No unlabelled product in inventory at any time (write-protect on Metrc-tagged inventory with no COA = quarantine zone)                           | Pass / Fail / N/A | _____        | OCP best practice                     |
|   | <b>T-12</b> | Annual product-testing lab audit (or every-3rd-party-cert audit) on file — best practice; documents your lab partner's chain of custody          | Pass / Fail / N/A | _____        | Best practice                         |

Domain D-6 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

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## Domain D-7. Marketing compliance (10 items)

| <b>■</b> | <b>&lt;b&gt;Code&lt;/b&gt;</b>  | <b>&lt;b&gt;Marketing compliance&lt;/b&gt;</b>                                                                                                                                       | <b>&lt;b&gt;Status&lt;/b&gt;</b> | <b>&lt;b&gt;Owner&lt;/b&gt;</b> | <b>&lt;b&gt;Citation&lt;/b&gt;</b> |
|----------|---------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|---------------------------------|------------------------------------|
|          | <b>&lt;b&gt;MK-01&lt;/b&gt;</b> | Marketing material targets minors or appeals-to-minors imagery (no cartoon characters, no candy lookalikes, no bright/childish design) — per Title 28-B §701(2)(B)                   | Pass / Fail / N/A                | _____                           | Title 28-B §701(2)(B)              |
|          | <b>&lt;b&gt;MK-02&lt;/b&gt;</b> | Health claims about cannabis efficacy without FDA disclaimer ("not evaluated by the FDA") — per FDA cannabis-non-evaluation standard                                                 | Pass / Fail / N/A                | _____                           | FDA standard                       |
|          | <b>&lt;b&gt;MK-03&lt;/b&gt;</b> | Unconditional health claims about medical-cannabis benefits (no "cures / treats / heals" without clinical-evidence citation) — best practice; FTC Endorsement Guides 16 CFR Part 255 | Pass / Fail / N/A                | _____                           | 16 CFR Part 255; Title 28-B §701   |
|          | <b>&lt;b&gt;MK-04&lt;/b&gt;</b> | Claims about products being "100% legal" or similar — federal illegality disclaimer present — per Title 28-B §1501 commentary                                                        | Pass / Fail / N/A                | _____                           | Title 28-B §1501                   |
|          | <b>&lt;b&gt;MK-05&lt;/b&gt;</b> | Billboard advertising within 500 feet of a K-12 school — per 18-691 CMR ch. 1 §5.4                                                                                                   | Pass / Fail / N/A                | _____                           | 18-691 CMR ch. 1 §5.4              |

## Domain D-7. Marketing compliance (10 items) (continued)

| ■ | <b>Code</b>  | <b>Marketing compliance</b>                                                                                                                               | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>      |
|---|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|----------------------|
|   | <b>MK-06</b> | No deceptive advertising (no false discounts, no misleading "first-time buyer" promotions that aren't real offers) — per Title 28-B §701 and FTC standard | Pass / Fail / N/A | _____        | Title 28-B §701; FTC |
|   | <b>MK-07</b> | Loyalty-program disclosures: no "free product" framing for loyalty rewards; reward-program terms documented — best practice                               | Pass / Fail / N/A | _____        | OCP best practice    |
|   | <b>MK-08</b> | No distribution of branded merchandise with appeal-to-minors themes; no cannabis-event sponsorships aimed at under-21 audiences — per Title 28-B §701     | Pass / Fail / N/A | _____        | Title 28-B §701      |
|   | <b>MK-09</b> | Quarterly marketing review on file with documented review of all in-flight campaigns (digital, print, signage) — best practice; OCP expects this on audit | Pass / Fail / N/A | _____        | OCP best practice    |
|   | <b>MK-10</b> | Vendor and partnership marketing: every external collaborator has signed a compliance disclosure about Maine cannabis marketing rules — best practice     | Pass / Fail / N/A | _____        | OCP best practice    |

Domain D-7 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

---

## Domain D-8. Municipal authorization (12 items)

| ■ | <b>Code</b>   | <b>Municipal authorization</b>                                                                                                                                             | <b>Status</b><b>Owner</b> | <b>Citation</b> |                    |
|---|---------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|-----------------|--------------------|
|   | <b>MUN-01</b> | Municipal opt-in status current (no opt-out re-vote active) — verified annually against town council minutes                                                               | Pass / Fail / N/A         | _____           | Title 28-B §403    |
|   | <b>MUN-02</b> | Municipal authorization letter valid; no lease-renewal failure for the dispensary location — best practice                                                                 | Pass / Fail / N/A         | _____           | Title 28-B §403(5) |
|   | <b>MUN-03</b> | Zoning verification: site still meets setbacks (500 ft from schools), local use permits current — best practice; usually tracked by municipality                           | Pass / Fail / N/A         | _____           | Title 28-B §405    |
|   | <b>MUN-04</b> | Dispensation municipal tax in compliance (some towns add 1-2% on top of state sales tax) — per MRS Rule 36-000 §2                                                          | Pass / Fail / N/A         | _____           | MRS Rule 36-000 §2 |
|   | <b>MUN-05</b> | Quarterly check-in with municipal clerk or town manager on any zoning or ordinance changes — best practice; many opt-in towns quietly amend their cannabis rules quarterly | Pass / Fail / N/A         | _____           | Title 28-B §403    |
|   | <b>MUN-06</b> | Unpaid property taxes (some opt-in towns tax cannabis property differently from residential) — per MRS Rule 36-000 §2                                                      | Pass / Fail / N/A         | _____           | MRS Rule 36-000 §2 |

## Domain D-8. Municipal authorization (12 items) (continued)

| ■ | <b>Code</b>   | <b>Municipal authorization</b>                                                                                                      | <b>Status</b>     | <b>Owner</b> | <b>Citation</b>    |
|---|---------------|-------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------------|--------------------|
|   | <b>MUN-07</b> | Is the license current at the local level (renewed annually by most towns) — per Title 28-B §403(5)                                 | Pass / Fail / N/A | _____        | Title 28-B §403(5) |
|   | <b>MUN-08</b> | Is there compliance with any local youth-protection buffer (e.g. extra buffer for daycares beyond the state 500-ft) — best practice | Pass / Fail / N/A | _____        | Title 28-B §405    |
|   | <b>MUN-09</b> | Are there any municipal complaints or pending citations against the license holder — verified annually                              | Pass / Fail / N/A | _____        | OCP best practice  |
|   | <b>MUN-10</b> | Is there a cooperative relationship with local fire marshal — annual fire inspection on file — best practice                        | Pass / Fail / N/A | _____        | Best practice      |
|   | <b>MUN-11</b> | Is there a cooperative relationship with local building inspector — current certificate of occupancy on file — best practice        | Pass / Fail / N/A | _____        | Best practice      |
|   | <b>MUN-12</b> | Is there any event sponsorship that would violate the town's cannabis-event ordinance — best practice                               | Pass / Fail / N/A | _____        | Title 28-B §701    |

Domain D-8 summary: \_\_\_\_ pass / \_\_\_\_ fail / \_\_\_\_ N/A. Action items:

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# 3 SOP templates (copy + adapt for your business)

These three SOP templates are minimal-viable skeletons. They are not legal advice; consult your licensed cannabis attorney before binding them as your internal SOPs.

## SOP-1: Daily Metrc reconciliation workflow

**Owner:** Inventory manager (or compliance officer for smaller operations). **When:** End of every business day. **Duration:** 15-20 minutes.

- Open Metrc daily reconciliation report (last 24 hours).
- Compare physical inventory (front of house + vault) against Metrc active inventory.
- Note any variance by category (flower, concentrate, edible, etc.).
- Yellow-tier variance: log in variance sheet, schedule 14-day corrective action review.
- Red-tier variance: suspend sales of the affected category; escalate to compliance officer immediately.
- Sign-off: inventory manager + (compliance officer if Red-tier event occurred).
- Daily reconciliation log archived 12 months minimum.

## SOP-2: OCP auditor visit protocol

**Owner:** Compliance officer. **When:** On the day of any scheduled or unscheduled OCP auditor visit.

- Greet the auditor, ask for ID, record the auditor's name + license number on the visitor log.
- Bring the most recent monthly reconciliation report + the variance log + the badge audit + the CCTV retention summary.
- If the auditor requests a random date for daily reconciliation: pull the requested day's log within 60 seconds.
- If the auditor requests CCTV for an event: pull from the cloud archive within 60 seconds.
- If the auditor asks for any item below internal compliance threshold: produce a documented action plan + remediation owner + target date (auditors prefer documented fixes over promises).
- At end of visit: request the auditor sign your audit-book signature line (operator practice).

## SOP-3: New-employee badge + training workflow

**Owner:** Compliance officer. **When:** Day 1 of every new employee.

- Employee application packet (license-required: photo ID, MC record check form, completed OCP application).
- Submit to OCP within 5 business days of start date.
- Employee may NOT handle cannabis until OCP badge issued (typically 14-30 days).
- Schedule the 8-hour responsible-vendor training for day of badge issuance (or before first day on the floor).
- Add to the badge audit log: badge number, issue date, background-check date, responsible-vendor training date, all renewal dates.
- Annual renewal cycle: both background recheck and responsible-vendor training anniversary. Calendar reminders 30 days before.

# Scoring summary — fillable

Across all 8 domains, target is 88/88 Pass with N/A documented where applicable. Total Pass rate at any quarterly or pre-audit review is the headline number. Fail rate >5% at any review triggers escalation to your licensed cannabis attorney.

| Domain                  | Items     | Pass target  | Fail escalation                                              |
|-------------------------|-----------|--------------|--------------------------------------------------------------|
| D-1 Facility security   | 12        | 12/12        | Any fail: compliance officer + escalation                    |
| D-2 Metrc inventory     | 10        | 10/10        | Yellow: 14-day fix; Red: stop-sale + escalate                |
| D-3 Licensing docs      | 10        | 10/10        | Any fail: reapply/amend with OCP within 30 days              |
| D-4 Employee records    | 12        | 12/12        | Any fail: operator-level remediation; HR escalation          |
| D-5 Financial reporting | 10        | 10/10        | Any fail: CPA review within 30 days                          |
| D-6 Testing + labeling  | 12        | 12/12        | Any fail: quarantine + COA rework                            |
| D-7 Marketing           | 10        | 10/10        | Any fail: pull creative, replace, document decision          |
| D-8 Municipal           | 12        | 12/12        | Any fail: contact municipal clerk + lawyer                   |
| <b>TOTAL</b>            | <b>88</b> | <b>88/88</b> | <b>&gt;5% Fail rate at any review = escalate to attorney</b> |

## Post-assessment handoff:

- Print and bind a hardcopy of this assessment — keep at the dispensary for OCP auditor visits.
- File a copy in your cloud compliance archive (encrypted, audit-logged access).
- Re-run on the same cadence forever; the only constant in Maine cannabis is change.
- If any Fail-rate trend is worsening over two consecutive quarterly reviews, schedule a half-day with your cannabis attorney before the next OCP touchpoint.

# Resources and primary sources

## Maine primary sources (cited throughout this self-assessment):

- Title 28-B (Maine Cannabis Legalization Act) — [legislature.maine.gov/statutes/28-B/](https://legislature.maine.gov/statutes/28-B/)
- Title 22 ch. 558-C (Maine Medical Use of Cannabis Act) — [legislature.maine.gov/statutes/22/title22ch558-C.pdf](https://legislature.maine.gov/statutes/22/title22ch558-C.pdf)
- 18-691 CMR ch. 1 (Adult Use Marijuana Program Rule) — [maine.gov/dafs/ocp/rules-statutes](https://maine.gov/dafs/ocp/rules-statutes)
- 18-691 CMR ch. 3 (Security Rule, including camera/alarm/vault/access control specs)
- 18-691 CMR ch. 4 (MetrC track-and-trace rule, daily + monthly reconciliation cadence)
- 18-691 CMR ch. 5 (Adult Use Marijuana Testing Rule)
- Maine IRS guidance on IRC §280E — [irs.gov/businesses/small-businesses-self-employed/irc-280E](https://irs.gov/businesses/small-businesses-self-employed/irc-280E)
- Maine Revenue Services cannabis tax guidance — [maine.gov/revenue/taxes/cannabis](https://maine.gov/revenue/taxes/cannabis)
- [FDA cannabis-non-evaluation standard disclaimer](https://www.fda.gov/news-events/public-health-focus/fda-regulation-cannabis-and-cannabis-derived-products) — [fda.gov/news-events/public-health-focus/fda-regulation-cannabis-and-cannabis-derived-products](https://www.fda.gov/news-events/public-health-focus/fda-regulation-cannabis-and-cannabis-derived-products)
- FTC Endorsement Guides (16 CFR Part 255) — [ftc.gov/](https://ftc.gov/)
- OCP Annual Report (2025, Dec 31 2025 data) — [maine.gov/dafs/ocp/about-us/annual-reports](https://maine.gov/dafs/ocp/about-us/annual-reports)

## Companion checklists:

- Maine Dispensary Founder Roadmap — </download-checklist>
- METRC Monthly Reconciliation Checklist — </download/metrc-reconciliation-checklist>

## Continue reading on [mainedispensaryguide.com](https://mainedispensaryguide.com):

- Maine Dispensary License: Complete OCP Application Guide — </guides/maine-dispensary-license>
- Maine Cannabis Operator Compliance Audit Prep — </guides/maine-cannabis-compliance-audit>
- Editorial Corrections Log — </about/corrections>

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## Editorial standard and corrections.

Every claim in this self-assessment is anchored to a primary source cited per item. Material corrections are documented at [mainedispensaryguide.com/about/corrections](https://mainedispensaryguide.com/about/corrections).

This content is informational and does not constitute legal or compliance advice. Compliance postures cited here are operator-facing guidance derived from OCP enforcement record as of the publish date above. Verify current requirements with the OCP compliance portal and your own counsel before binding internal SOPs.

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First published 2026-07-08. By Calvin Waters. Editorial signatory: Steve Kelly.